PARLIAMENT OF CEYLON

5th Session 1964-65





Motor Traffic (Amendment) Act, No. 40 of 1964

Date of Assent: November 12, 1964

Printed on the Orders of Government

Printed at the GOVERNMENT PRESS, CEYLON. To be purchased at the GOVERNMENT PUBLICATIONS BUREAU, COLOMBO

Annual Subscription (including Bills) Rs. 30 (Local), Rs. 40 (Foreign), payable to the SUPERINTENDENT, GOVERNMENT PUBLICATIONS BUREAU, P. O. BOX 500, COLOMBO 1, before 20th December each year in respect of the year following. Late subscriptions will be accepted on the condition that Bills issued before the date of payment will not be supplied.

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L. D.—O. 3/63.

AN ACT TO AMEND THE MOTOR TRAFFIC ACT.

Chapter 203, Vol. VII, Page 434.

[Date of Assent: November 12, 1964]

BE it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Senate and the House of Representatives of Ceylon in this present Parliament assembled, and by the authority of the same, as follows:—

Short title and date of operation.

1. This Act may be cited as the Motor Traffic (Amendment) Act, No. 40 of 1964, and shall come into operation on such date as the Minister may appoint by Order published in the *Gazette*.

Amendment of section 5 of Chapter 203.

2. Section 5 of the Motor Traffic Act, hereinafter referred to as the "principal Act", is hereby amended, in sub-section (3) of that section, by the substitution, for the words "a lorry", of the words "a lorry, motor tricycle van".

Amendment of section 26 of the principal Act.

3. Section 26 of the principal Act is hereby amended, in sub-section (1) of that section, by the substitution, for the words "a lorry licence", of the words "a lorry licence, a motor tricycle van licence".

Amendment of section 122 of the principal Act.

4. Section 122 of the principal Act is hereby amended by the substitution, for paragraph (*g*) of that section, of the following new paragraphs:—

"(*g*) private cars,
(*h*) motor tricycle vans,
(*i*) land vehicles, and
(*j*) motor vehicles not hereinbefore specified.".

Amendment of section 128 of the principal Act.

5. Section 128 of the principal Act is hereby amended, in sub-section (2) of that section, by the substitution, for the words "motor cycles", wherever those words occur collectively in that sub-section, of the words "motor cycles, motor tricycle vans".

Amendment of section 240 of the principal Act.

6. Section 240 of the principal Act is hereby amended as follows:—

(1) in the definition of "lorry", by the substitution, for the words "a land vehicle", of the words "a land vehicle or motor tricycle van";

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(2) in the definition of " motor cycle ", by the substitution, for the words " motor vehicle ", of the words " motor vehicle, other than a motor tricycle van,"; and

(3) by the insertion, immediately after the definition of "Motor Traffic Advisory Council", of the following new definition:—

' " motor tricycle van " means a motor vehicle designed to travel on three wheels, and having a tare which does not exceed five hundredweight, and which is constructed or adapted wholly or mainly for the carriage of goods; '.